INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("Agreement") is entered into as of _____, 2026 (the "Effective Date") by and between _____ (the "Company") and _____ ("Contractor," together with the Company, the "Parties" and, each, a "Party").

NOW, THEREFORE, in consideration of the mutual promises and agreements contained in this Agreement, and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. Services.

1.1 Contractor shall render the Services set forth in Exhibit A hereto (collectively, the "Services") for the Company. Contractor agrees to perform the Services (i) in a competent and professional manner; (ii) in compliance with all applicable laws and regulations; and (iii) on a timely basis in accordance with any schedules set forth in Exhibit A or otherwise established by the Company or, if no such schedule has been established, as required by the facts and circumstances.

1.2 Contractor shall have the right to perform the Services in such manner, and at such locations, as Contractor deems appropriate, subject to any inherent requirements related to the Services, such as work which by its very nature must be performed at the Company's location(s) or at some other location. Subject to the foregoing, Contractor shall exercise reasonable judgment with respect to the manner, and place of performance of the Services, so long as any performance deadlines and guidelines that may be established by the Company are satisfied.

1.3 Contractor represents and warrants that Contractor maintains all of the business licenses, professional licenses, and permits, bonds and insurance policies required to perform the Services.

2. Term of Agreement. This Agreement shall commence and become effective as of the Effective Date and shall continue until terminated by either Party, at any time, for any or no reason, with [30] days prior written notice to the other Party (the "Term"). Notwithstanding the foregoing, the Term and this Agreement will terminate immediately upon the death or incapacity of Contractor. Upon termination of this Agreement pursuant to its terms, the Company will be responsible only for all outstanding fees owed for Services performed prior to the date of termination.

3. Payment.

3.1 In consideration for the Services, the Company shall pay Contractor at the rate of $_____ per **[hour/day/week/month]**. Contractor shall submit an invoice to the Company following the end of each month for Services rendered during such month. Other than the payments provided by this Section 3, Contractor shall not be entitled to any other compensation of any kind unless the Company specifically approves such compensation in advance in writing. Neither federal, state, nor local taxes of any kind shall be withheld or paid

by the Company on behalf of Contractor in connection with payments made by the Company under this Section 3. The Company shall issue a Form 1099 to any Contractor who is a natural person with respect to such payments that, in the aggregate, are equal to or greater than $600 in any calendar year or as otherwise required by law. Contractor acknowledges that, as an independent contractor, Contractor will be *solely* liable for, and indemnify and defend the Company with respect to, any and all tax liability (including any penalties and interest) associated with Contractor's provision of the Services and any payments made to Contractor by the Company under this Agreement.

3.2 Even if a court or government agency determines that Contractor and the Company have or had a common law employer-employee relationship, Contractor will still be bound by this Agreement and will not be entitled to receive from the Company or have the Company provide on Contractor's behalf any different or additional pay, or any benefits, insurance coverage, tax payments, or withholding, or compensation of any kind, to the maximum extent permitted by applicable law. Contractor hereby knowingly and voluntarily waives any right to claim any such benefits or payments on the ground of the performance of Services under this Agreement, to the maximum extent permitted by applicable law.

4. Tools, Equipment and Supplies. Contractor will supply, at Contractor's cost, all tools, equipment and supplies required to perform the Services.

5. Expenses. The Company shall reimburse Contractor for reasonable out-of-pocket expenses necessarily and actually incurred by Contractor in connection with performing the Services in accordance with the Company's customary payment practices for independent contractors of the Company. No expenses in excess of $100 will be incurred by Contractor on behalf of Company without Company's prior written approval. Such reimbursable expenses shall be reimbursed by Company based upon the original cost to Contractor, without any subsequent mark-ups. Contractor shall supply Company with an invoice and all supporting documentation required by the Company for all such out-of-pocket expenses.

6. Independent Contractor.

6.1 The Parties intend that the relationship created by this Agreement shall be that of service recipient and independent contractor. Nothing herein creates or is intended to create any employment relationship between Contractor (or its Assistants (defined in Section below), if any, which for purposes of this Section shall be included in the term "Contractor") and the Company, and Contractor agrees not to represent to others that Contractor is an employee of the Company.

6.2 None of the benefits, if any, that the Company provides to its employees shall be available to Contractor. Contractor's exclusion from benefit programs maintained by the Company is a material component of the terms of compensation negotiated by the Parties, and is not premised on Contractor's status as a nonemployee with respect to the Company. To the extent that Contractor may become eligible for any benefit programs maintained by the Company (regardless of the timing of or reason for eligibility), Contractor hereby waives its right to participate in the programs, to the maximum extent permitted by applicable law. Contractor also agrees, consistent with its independent contractor status and to the maximum extent

permitted by applicable law, it will not apply for any government-sponsored benefits that are intended to apply to employees of the Company, including, but not limited to, unemployment benefits. Contractor also acknowledges and agrees that, as an independent contractor, Contractor is not entitled to, and will not receive, any overtime compensation or workers' compensation coverage from the Company.

6.3 This Agreement shall not be construed as creating a partnership or joint venture between the parties or as creating any other form of legal association that would impose liability upon one party for the act or failure to act of the other party. Further, Contractor shall have no authority to bind Company in any respect.

6.4 As an independent contractor, Contractor shall retain the exclusive right to control and direct the place, manner and means by which the Services are accomplished, within the proscribed guidelines set by the Company and subject to the requirement that Contractor meets all goals and deadlines. Contractor acknowledges and affirms that Contractor has independently made the decision to go into business for itself to perform the Services under this Agreement.

6.5 Contractor further acknowledges that Contractor is responsible for carrying and maintaining all required insurance coverage, such as workers' compensation and unemployment insurance. Contractor acknowledges that, to the extent so limited by law, its workers' compensation coverage is the sole remedy for any injury incurred in connection with performing the Services, including injuries incurred while driving an automobile in connection with the Company's business. Contractor hereby knowingly and voluntarily waives any right to claim any coverage and/or benefits under the Company's workers' compensation insurance policy.

6.6 Contractor acknowledges and understands that Contractor may contract with other businesses to provide services (including, without limitation, services similar to those under this Agreement); provided, however, that Contractor shall not enter into any other independent contractor, employment or business relationship that impairs Contractor's ability to perform Contractor's obligations under this Agreement. Contractor agrees and represents that Contractor will devote such time, attention and energy as is necessary to provide the Services to the Company as required by this Agreement.

7. Right to Engage Agents or Subcontractors. Contractor shall have the right to engage others to assist in the accomplishment of the Services ("Assistants"), including Contractor's employees. Contractor shall be solely responsible for paying all compensation owed to any Assistants, and for taxes related thereto, and shall defend, indemnify and hold harmless the Company for any claim by or on behalf of an Assistant related to wages, penalties or workers' compensation coverage. Contractor agrees to provide notice to the Company of any intent to engage subcontractors to assist in the accomplishment of the Services and obtain the Company's consent prior to utilization of such subcontractors.

8. Confidentiality and Non-Interference.

8.1 Representations and Acknowledgements. For purposes of Sections 8 through 11 hereof, the term "Company" shall refer to not only the Company, but also, jointly and severally, to any entity, directly or indirectly, through one or more intermediaries, controlled by, in control of, or under common control with, the Company (collectively, "Company Affiliates"). Contractor represents and acknowledges that: (i) among the Company's most valuable and indispensable assets are its Confidential Information (defined below) and its close relationships with its customers, employees and independent contractors, which the Company has devoted and continues to devote a substantial amount of time, money and other resources to develop; (ii) in connection with performing the Services, Contractor will be exposed to and acquire the Company's Confidential Information and develop, at the Company's expense, special and close relationships with the Company's customers, employees and independent contractors; (iii) the Company's Confidential Information and close relationships with its customers, employees and independent contractors must be protected; (iv) the Company is engaging Contractor hereunder only because of the promises and acknowledgements that Contractor makes in this Agreement; (v) to the extent required by law, the scope of the covenants in this Agreement are reasonable and do not impose a greater restraint on Contractor than is necessary to protect the Company's Confidential Information, close relationships with its customers, employees and independent contractors and other legitimate business interests; and (vi) Contractor's compliance with such covenants will not inhibit Contractor from earning a living or from working in Contractor's chosen profession.

8.2 Confidential Information.

(a) Protection of Confidential Information. Contractor agrees that both during Contractor's engagement by the Company and at all times thereafter, Contractor will not, except as required to discharge effectively and appropriately the Services or as may be required by law, directly or indirectly, use, reproduce or disclose to any third person, without the prior written consent of the Company, any Confidential Information (as defined in Section below below) of the Company. If it is necessary for Contractor to use or disclose Confidential Information so as to comply with any law, rule, regulations, court order, subpoena or other governmental mandate or investigation, Contractor shall give prompt written notice to the Company of such requirement (to the extent legally permissible), disclose no more information than is so required, and cooperate with any attempts by the Company to obtain a protective order or similar treatment. In the event that the Company is bound by a confidentiality agreement or understanding with a customer, vendor, supplier or other party regarding the confidential information of such customer, vendor, supplier or other party, which is more restrictive than specified above in this Section 8.2, and of which Contractor has notice or is aware, Contractor shall adhere to the provisions of such other confidentiality agreement, which shall not be superseded by this Section 8.2. Contractor shall exercise reasonable care to protect all Confidential Information. Contractor will immediately give notice to the Company of any unauthorized use or disclosure of Confidential Information. Contractor hereby represents and warrants that Contractor shall assist the Company in remedying any such unauthorized use or disclosure of Confidential Information. Notwithstanding any provisions of this Section (a), Contractor's obligations shall not be interpreted or applied in a manner that would conflict with Section below below.

(b) Confidential Information Defined. For purposes of this Agreement, "Confidential Information" means all information of a confidential or proprietary nature regarding the Company or its business or properties that the Company has furnished or furnishes to Contractor, whether before or after the date of this Agreement, or is or becomes available to Contractor by virtue of Contractor's engagement by the Company, whether tangible or intangible, and in whatever form or medium provided, as well as all information Contractor generates that contains, reflects or is derived from such information that, in each case, has not been published or disclosed to, and is not otherwise known to, the public. The term, "Confidential Information" shall include, but not be limited to, customer lists, customer requirements and specifications, designs, financial data, sales figures, costs and pricing figures, marketing and other business plans, product development, marketing concepts, personnel matters (including Contractor skills and compensation), drawings, specifications, instructions, methods, processes, techniques, computer software or data of any sort developed or compiled by the Company, formulae or any other information relating to the Company's services, products, sales, technology, research data, software and all other know-how, trade secrets or proprietary information, or any copies, elaborations, modifications and adaptations thereof. For the avoidance of doubt, Contractor acknowledges and agrees that Confidential Information protected under this Agreement includes information regarding pay, bonuses, benefits and perquisites offered to or received by employees and contractors of the Company, as well as non-public information regarding the unique and special skills of specific employees and how such skills are valuable and integral to the Company's operations. Notwithstanding the foregoing, Confidential Information shall not include any information (i) that is generally known to the industry or the public other than as a result of Contractor's breach of this covenant; (ii) that is made available to Contractor by a third party without that party's breach of any confidentiality obligation; or (iii) which was developed by Contractor outside or independent of Contractor's performance of Contractor's obligation to render services on behalf of the Company.

8.3 Non-Interference.

(a) No Interference with Customers. Contractor agrees that, during the Restricted Period (defined in Section below below), regardless of whether, or on what basis, Contractor's engagement hereunder is terminated or any claim that Contractor may have against the Company under this Agreement or otherwise, Contractor shall not, directly or indirectly (defined below), actually or attempt to, (i) solicit, induce, or cause any Customer (as defined in Section below below) to terminate, reduce or refrain from renewing or extending its contractual or other business relationship with the Company; (ii) solicit, induce or cause any Customer to become a customer of or enter into any contractual or other relationship with Contractor or any other person or entity for Competing Services (as defined in Section below below); and/or (iii) offer or provide to any Customer any Competing Services.

(b) No Interference with Employees and Other Suppliers. Contractor agrees that, during the Restricted Period, regardless of whether, or on what basis, Contractor's engagement hereunder is terminated or any claim that Contractor may have against the Company under this Agreement or otherwise, Contractor shall not, directly or indirectly, actually or attempt to: (i) solicit, induce, or cause any Supplier (as defined in Section below below) of the Company to terminate, reduce or refrain from renewing or extending such person's or entity's business or other relationship with the Company; (ii) solicit, induce or cause any employee of the

Company to engage in Competing Services; or (iii) employ or otherwise engage as an independent contractor or consultant (1) any employee of the Company or (2) any person who was employed by the Company within the then prior six-month period.

(c) Definitions. For the purposes of this Agreement, the following terms shall have the following meanings.

(i) "Competing Services" means products or services that are the same, similar or otherwise in competition with the products and services that the Company is then currently offering (or of which Contractor has knowledge, at the time in question, that the Company has plans to offer within twelve (12) months) with which Contractor was involved or about which Contractor acquired Confidential Information.

(ii) "Customer" means any company or individual: (i) who purchased products or services from the Company whom Contractor contacted or served during the Term, for whom Contractor supervised contact or service during the Term or about whom Contractor acquired Confidential Information; and/or (ii) who was a potential customer of the Company within the one year immediately preceding the Termination Date and (A) about whom Contractor acquired Confidential Information or (B) who contacted Contractor, whom Contractor contacted, or for whom Contractor supervised contact regarding the potential purchase of products or services of the Company.

(iii) "directly or indirectly" as it relates to an activity taken by Contractor includes any activity taken directly by Contractor or indirectly on Contractor's behalf, including any activity taken in conjunction with any other person or entity, and including any activity taken by Contractor as an employee, agent, consultant, independent contractor, officer, director, principal, shareholder, equity holder, partner, member, joint venturer, lender, investor or otherwise.

(iv) "Restricted Period" means the Term and for a period of one (1) year thereafter, except that such period shall be extended for any period therein during which Contractor was in violation of any provision of this Section 8.3.

(v) "Supplier" means any supplier of goods, services, funding, leads or prospects to the Company, including as an employee, independent contractor or in any other capacity.

9. Ownership of Intellectual Property.

9.1 The Company's Proprietary Rights. Contractor acknowledges and agrees that all Intellectual Property (defined below) created, made or conceived by Contractor (solely or jointly) during Contractor's engagement by the Company that relates to the actual or anticipated businesses of the Company or results from or is suggested by any work performed by employees or other independent contractors for or on behalf of the Company ("Company-Related Intellectual Property") shall be deemed "work for hire" and shall be and remain the sole and exclusive property of the Company for any and all purposes and uses whatsoever as soon as Contractor conceives or develops such Intellectual Property, and Contractor hereby agrees that its assigns, executors, heirs, administrators or personal representatives shall have no right, title or

interest of any kind or nature therein or thereto, or in or to any results and proceeds therefrom. If for any reason such Company-Related Intellectual Property is not deemed to be "work-for-hire," then Contractor hereby irrevocably and unconditionally assigns all rights, title, and interest in such Company-Related Intellectual Property to the Company. In addition, Contractor hereby waives any so-called "moral rights" in and in respect of the Company-Related Intellectual Property. Contractor shall promptly disclose in writing to the Company the existence of any and all Company-Related Intellectual Property. As used in this Agreement, "Intellectual Property" shall mean and include any ideas, inventions (whether or not patentable), designs, improvements, discoveries, innovations, patents, patent applications, trademarks, service marks, trade dress, trade names, trade secrets, works of authorship, copyrights, copyrightable works, films, audio and video tapes, other audio and visual works of any kind, scripts, sketches, models, formulas, tests, analyses, software, firmware, computer processes, computer and other applications, creations and properties, Confidential Information and any other patents, inventions or works of creative authorship.

9.2 Cooperation. Contractor agrees to assist the Company, and to take all reasonable steps, with securing patents, registering copyrights and trademarks, and obtaining any other forms of protection for the Company-Related Intellectual Property in the United States and elsewhere. In particular, at the Company's expense (except as noted in clause (i) below), forthwith upon request of the Company, Contractor shall execute, or cause its Assistants to execute, all such assignments and other documents (including applications for patents, copyrights, trademarks, and assignments thereof) and take all such other action as the Company may reasonably request in order (i) to vest in the Company all of Contractor's or its Assistants' right, title, and interest in and to such Company-Related Intellectual Property, free and clear of liens, mortgages, security interests, pledges, charges, and encumbrances ("Liens") (and Contractor agrees to take such action, at its expense, as is necessary to remove all such Liens) and (ii), if patentable or copyrightable, to obtain patents or copyrights (including extensions and renewals) therefor in any and all countries in such name as the Company shall determine. In the event that Contractor is unable or unavailable or shall refuse to sign any lawful or necessary documents required in order for the Company to apply for and obtain any copyright or patent with respect to any work performed by Contractor under this Agreement (including applications or renewals, extensions, divisions or continuations), Contractor hereby irrevocably designates and appoints the Company and its duly authorized officers and agents as Contractor's agents and attorneys-in-fact to act for and in Contractor's behalf, and in Contractor's place and stead, to execute and file any such applications or documents and to do all other lawfully permitted acts to further the prosecution and issuance of copyrights and patents with respect to Company-Related Intellectual Property with the same legal force and effect as if executed or undertaken by Contractor.

9.3 No infringement. Contractor represents and warrants to the Company that all Services, Intellectual Property and any other work delivered to the Company hereunder shall be original and shall not infringe upon or violate any patent, copyright or proprietary right of any person or third party. Contractor further agrees to indemnify, defend and hold harmless, at Contractor's costs, the Company, pursuant to the terms of Section 12 below, against any loss or damage arising out of an infringement of any patent, copyright or other third-party proprietary right by Contractor's or its Assistants' work.

9.4 License to Prior Invention. If Contractor in the course of Contractor's engagement hereunder incorporates into a Company product Intellectual Property that Contractor has, alone or jointly with others, conceived, developed or reduced to practice prior to the commencement of Contractor's engagement hereunder in which Contractor has a property right (each, a "Prior Invention"), Contractor hereby grants to the Company a perpetual, nonexclusive, royalty-free, irrevocable, worldwide license (with the full right to sublicense) to make, have made, modify, use and sell such Prior Invention.

9.5 Severability. To the extent this Agreement is required to be construed in accordance with laws of any state which precludes as a requirement in a consulting or employment agreement the assignment of certain classes of inventions made by a consultant or employee, this Section 9 will be interpreted not to apply to any invention which a court rules and/or the Company agrees falls within such classes. In this regard, the Company hereby provides notice that Company-Related Intellectual Property shall not include, and there shall be no obligation hereunder for Contractor to assign any Intellectual Property for which no equipment, supplies, facility, or trade secrets of the Company was used and which was developed entirely on Contractor's own time, unless (i) the Intellectual Property relates (a) to the business of the Company; or (b) to the Company's actual or demonstrably anticipated research or development, or (ii) the Intellectual Property results from any work performed by Contractor for the Company.

10. Company Property. Contractor agrees that all Confidential Information, drawings, designs, reports, computer programs or data, books, handbooks, manuals, files (electronic or otherwise), computerized storage media, papers, memoranda, letters, notes, photographs, facsimile, software, computers, smart phones and other documents (electronic or otherwise), materials and equipment of any kind that Contractor has acquired or will acquire during the course of Contractor's engagement by the Company are and remain the property of the Company. Upon termination of this Agreement, or sooner if requested by the Company, Contractor agrees to return all such documents, materials and records to the Company and not to make or take copies of the same without the prior written consent of the Company.

11. Remedies and Notice to Others.

11.1 Contractor understands and acknowledges that a breach of any of the provisions of Sections 8 through 10 hereof would injure the Company irreparably in a way which could not be adequately compensated for by an award of monetary damages. Contractor therefore consents to the issuance to the Company of an injunction, without the posting of a bond, to restrain any such breach or threatened breach. Additionally, in the event Contractor breaches or threatens to breach any of the covenants, promises or obligations contained in this Agreement, the Company shall be entitled to recover without limitation from Contractor all costs and fees (including reasonable attorneys' fees) incurred by the Company in connection with enforcing this Agreement. Nothing herein shall be construed, however, as prohibiting the Company from pursuing any other available remedies for such breach or threatened breach. Contractor agrees that any claim or cause of action Contractor may have against the Company, whether or not predicated on this Agreement, shall not constitute a defense to the enforcement by the Company of the restrictive covenants herein.

11.2 Upon commencing any new employment or independent contractor relationship during the Restricted Period, Contractor agrees that Contractor shall expressly advise each new employer or person or entity for whom Contractor has agreed to serve as an independent contractor of Contractor's continuing obligations to Company under this Agreement and, in particular, Sections 8 through 10 hereof.

11.3 The Company's liability to Contractor hereunder shall be limited to the payments and benefits provided by this Agreement. In no event, shall such liability include consequential, special, indirect, incidental, punitive or exemplary damages, costs, expenses or losses (including, without limitation, any future earnings or compensation not provided for herein).

12. Indemnification. Contractor agrees to indemnify, defend and hold harmless, at its cost, the Company, its subsidiaries, affiliates, and their officers, agents, directors, employees and subcontractors against any and all liability, payments, damages, costs, attorneys' fees and expenses from any asserted or threatened claims or causes of action of whatever nature: (i) arising out of the acts or omissions of Contractor, or its Assistants, and not solely caused by the acts or omissions of the Company's agents, personnel, representatives, or employees, in connection with Contractor's performance of its obligations hereunder; or (ii) as a result of (A) any failure of Contractor to withhold any required amounts paid to Contractor's Assistants or (B) any failure of Contractor or the Company to pay in a timely manner any income, employment or other taxes (other than the portion of payroll taxes typically paid by an employer) required to be paid by either Party as a result of any adjudication by the Internal Revenues Service, or other entity of appropriate jurisdiction, finding that the Contractor, and/or its Assistants, should be treated, for tax purposes, as an employee(s) of the Company, or one of its subsidiaries or affiliates. Unless the Company requests otherwise, Contractor shall have the obligation to control the defense, negotiation and settlement of any claim for which Contractor has the obligation to provide indemnification. The Company shall cooperate and assist Contractor in the defense of any such claim.

13. Non-Disparagement. During and after Contractor's engagement hereunder, except as may be required by law, Contractor shall not make any disparaging statement (verbal, written or otherwise) about the Company or its financial status, business, personnel, directors, officers, consultants, services or business methods. This Section does not apply to (i) truthful statements made in connection with legal proceedings, governmental and regulatory investigations and actions; (ii) any other truthful statement or disclosure required by law; or (iii) good faith intra-Company communications made for legitimate business reasons in furtherance of the Services. Further, this Section not be interpreted or applied in a manner that would conflict with Section below below.

14. Immunity for Certain Limited Disclosures; Permitted Disclosures. Contractor acknowledges that Contractor has been notified in accordance with the federal Defend Trade Secrets Act (18 U.S. Code § 1833(b)(1)) that an individual shall not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret that: (a) is made (i) in confidence to a federal, state, or local government official, either directly or indirectly, or to an attorney; *and* (ii) solely for the purpose of reporting or investigating a suspected violation of law; ***or*** (b) is made in a complaint or other document filed in a lawsuit or

other proceeding, *if* such filing is made under seal. Notwithstanding anything to the contrary in this Agreement, no provision of this Agreement prohibits Contractor from (i) communicating with Contractor's attorneys; (ii) making any statement or disclosure required by law; (iii) reporting possible violations of law or regulation to any governmental agency or regulatory body or making other disclosures that are protected under any law or regulation, including, without limitation, filing a charge or complaint with, or participating, cooperating, or testifying in any action, investigation, or proceeding with, or providing information to, any governmental agency, legislative body, or any self-regulatory organization, and (iv) making disclosures under the whistleblower provisions of federal, state, or local law or regulation.

15. Miscellaneous.

15.1 Authority to Enter into Agreement. Contractor represents and warrants that Contractor has the authority to enter into this Agreement and is not bound by any other agreements or restrictions which might prevent Contractor from carrying out the terms hereof.

15.2 Assignment. Contractor may not assign Contractor's rights or obligations under this Agreement without the prior written consent of the Company. This Agreement and all rights hereunder may be assigned by the Company, its affiliates, subsidiaries, successors and assigns.

15.3 Severability and Blue Penciling. If any provision of this Agreement is held to be invalid, the remaining provisions shall remain in full force and effect. However, if any court determines that any covenant in this Agreement, including, without limitation, any restrictive covenant or any part thereof, is unenforceable because the duration, geographic scope or restricted activities thereof are overly broad, then such provision or part thereof shall be modified by reducing the overly broad duration, geographic scope or restricted activities by the minimum amount so as to make the covenant, in its modified form, enforceable.

15.4 Choice of Law and Forum; *Jury Waiver*. This Agreement shall be interpreted and enforced in accordance with the laws of the State of New York, without regard to its conflict-of-law principles. The Parties agree that any dispute concerning or arising out of this Agreement or otherwise between the Parties shall be heard, *without a jury*, exclusively in an appropriate state or federal court in New York County, New York and hereby consent, and waive any objection, to the jurisdiction of any such court.

15.5 Survival of Terms. All provisions of this Agreement that, either expressly or impliedly, contain obligations that extend beyond the term of this Agreement, including without limitation those of Sections 8-14 hereof, shall survive the termination of this Agreement and of Contractor's engagement hereunder for any reason.

15.6 Interpretation. The headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of this Agreement. The language in all parts of this Agreement shall in all cases be construed according to its fair meaning, and not strictly for or against any Party. The Parties acknowledge that both of them have participated in drafting this Agreement; therefore, any general rule of construction that any ambiguity shall be construed against the drafter shall not apply to this Agreement. In this

Agreement, unless the context otherwise requires, the masculine, feminine and neuter genders and the singular and the plural include one another.

15.7 Further Assurances. The Parties will execute and deliver such further documents and instruments and will take all other actions as may be reasonably required or appropriate to carry out the intent and purposes of this Agreement.

15.8 Voluntary and Knowing Execution of Agreement. Contractor acknowledges that (i) Contractor has had the opportunity to consult an attorney regarding the terms and conditions of this Agreement before executing it, (ii) Contractor fully understands the terms of this Agreement including, without limitation, the significance and consequences of the restrictive covenants in Section above, above, and (iii) Contractor is executing this Agreement voluntarily, knowingly and willingly and without duress.

15.9 Entire Agreement. This Agreement constitutes the entire understanding and agreement of the Parties concerning the subject matter hereof, and it supersedes all prior negotiations, discussions, correspondence, communications, understandings and agreements regarding such subject matter. Each Party acknowledges and agrees that such Party is not relying on, and may not rely on, any oral or written representation of any kind that is not set forth in writing in this Agreement.

15.10 Waivers and Amendments. This Agreement may be altered, amended, modified, superseded or cancelled, and the terms hereof may be waived, only by a written instrument signed by the Parties or, in the case of a waiver, by the Party alleged to have waived compliance. Any such signature of the Company must be by an authorized signatory for the Company. No delay by any Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof, nor shall any waiver on the part of any Party of any such right, power or privilege, nor any single or partial exercise of any such right, power or privilege, preclude any other or further exercise thereof or the exercise of any other such right, power or privilege.

15.11 Counterparts. This Agreement may be executed in counterparts, and each counterpart, when executed, shall have the efficacy of a signed original. Photographic copies, electronically scanned copies and other facsimiles of this Agreement (including such signed counterparts) may be used in lieu of the originals for any purpose.

[*The remainder of this page is intentionally blank; signature page follows*.]

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

COMPANY	CONTRACTOR
By: _____	_____
Name:	Name:
Title:	